

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

AJAX COLLADO,

Respondent

) Case Number: FCS-09-344959

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME), AND TIER 2
WITH MINOR CHILD, ORDER OTHER PARENT TO RETURN CLOTHING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Respondent Ajax Collado (Father) and Other Parent Jennyfer Murcia Madrid (Mother) have one
minor child, Kiara Collado Murcia (DOB 03/24/2009, age 17).
- 2) On for hearing is Father's Request for Order filed 3/25/2026 seeking sole legal custody and sole
physical custody, no visitation for Mother, a Tier II interview of Kiara, and an order requiring
Mother to return Kiara's belongings. Father states that Kiara disclosed to him last Christmas
break that she was sexually assaulted by classmates in or near Mother's home. Father states that
Kiara stayed with him for a week in January and two and a half weeks in February and has been
living solely with him since March 2026. He states that Mother has controlled his parenting time
and has prevented him from seeing Kiara. Father states Kiara is not performing at grade level, is
attending continuation school, and has a history of suicide attempts and self-harm, which Kiara
has told Father is triggered by arguments with Mother. Father states that Kiara says she wants to
move back to San Francisco, live with Father during the week and see Mother on the weekends,

1 and change schools due to the sexual assault. Father would like Mother to have no parenting time
2 until Kiara is more stable.

- 3 3) On 4/15/2026, Mother filed a responsive declaration stating she has been Kiara's sole caretaker
4 since she was an infant. She states she encouraged Father's relationship with Kiara but that he
5 was never around when Kiara was younger and has since spent time with Kiara only when it is
6 convenient for him. Mother states that Father often leaves Kiara alone with her stepmother and
7 stepbrothers and that the stepmother told Kiara she was not allowed to go back to Mother
8 "because of custody court." Mother states the stepmother also unilaterally unenrolled Kiara from
9 school and falsely named herself as the mother on the school form. Mother states she has been
10 speaking to a detective about the sexual assault incident to press charges and is looking to get
11 Kiara in therapy. Mother states Kiara is no longer speaking to Mother because of Father's
12 "manipulation and down talk" towards Mother. Mother states Kiara is afraid of the stepmother
13 and Father's reaction if she does talk to Mother. Mother states Kiara told her she does not want
14 Father to go to court for sole legal and physical custody and started to cry, saying she did not
15 want "any of this to happen" and that she loves Mother and wants to come home. Mother requests
16 that she remain the "sole legal guardian" and that Kiara be returned to her home, with Father
17 having parenting time on alternating weekends and special occasions like holidays and birthdays.

18 **B. Findings and Orders**

- 19 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
20 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
21 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
22 child is the United States.
- 23 2) The Court orders a Tier II interview of the minor child, Kiara, regarding her thoughts on custody
24 and parenting time. The Court hereby continues the hearing to **Tuesday, 7/28/2026 at 9:00 AM**
25 **in Dept. 404** to allow sufficient time for the interview to occur. The parties shall call Family
26 Court Services at (415) 238-3623 on or before 6/26/2026 to schedule Kiara's in-person interview.
27 The parties shall not speak to Kiara or allow others to speak to her regarding the interview, other
28 than to tell her that it is occurring and for scheduling purposes.
- 29

- 1 3) Pending the next hearing, both parties shall ensure that Kiara has her clothing and personal effects
- 2 while in either party's care and shall not prevent her from seeing or talking to either parent.
- 3 4) The Court will prepare the Findings and Order After Hearing.